

Terms of Service

Effective Date: April 12, 2026

Company: Just Peachy Data LLC

Product: Peach Suite Pro

1. Acceptance of Terms

By accessing or using Peach Suite Pro ("Service"), you agree to be bound by these Terms of Service. If you do not agree, you may not use the Service.

2. Description of Service

Peach Suite Pro is a business management platform designed for spa and wellness businesses, including features such as:

- Client management
- Appointment tracking
- Financial tracking (income, loans, contributions)
- Email communications (including promotional and transactional emails)

3. User Accounts

You agree to:

- Provide accurate and complete information
- Maintain the security of your login credentials
- Be responsible for all activity under your account

Businesses and users of Peach Suite Pro are solely responsible for obtaining and maintaining lawful consent from their clients prior to transmitting SMS or email communications.

Users of Peach Suite Pro shall maintain records of all signed consent forms, electronic consent acknowledgements, web form submissions, intake documents, and/or other records demonstrating client consent for SMS and email communications.

Consent records should be retained in accordance with applicable laws, carrier requirements, and business record retention policies.

Peach Suite Pro reserves the right to suspend or terminate messaging services for any user or business found to be in violation of applicable messaging laws, carrier regulations, anti-spam requirements, or platform communication policies.

4. Acceptable Use

You agree NOT to use the Service to:

- Send spam or unsolicited emails
- Violate any laws or regulations
- Upload malicious code or attempt to disrupt the system
- Store or transmit unlawful or harmful content

5. Email and SMS Communications

By using the Service, you agree to comply with all applicable communication laws and regulations, including the CAN-SPAM Act and TCPA (Telephone Consumer Protection Act).

Users are responsible for obtaining appropriate consent before sending communications and for maintaining proper opt-in and opt-out procedures.

ALL email messages transmitted through the platform contain a hard-coded compliance Opt-Out notice.

This compliance notice is automatically inserted at the time of email transmission and cannot be altered, modified, or removed by users of the platform.

For SMS messaging:

- Recipients may opt out at any time by replying STOP
- Recipients may reply HELP for assistance
- Message and data rates may apply
- Message frequency may vary
- Email and SMS delivery is not guaranteed and may depend on third-party service providers such as Twilio and Mailgun.

ALL SMS AND Email messages transmitted through the platform contain a hard-coded compliance Opt-Out notice.

This compliance notice is automatically inserted at the time of email transmission and cannot be altered, modified, or removed by users of the platform.

SMS Consent & Opt-In

Users may opt in to receive SMS communications from businesses using Peach Suite Pro by:

- submitting appointment request forms
- completing client intake forms
- providing consent during account registration
- verbally consenting during business interactions

SMS communications may include appointment reminders, confirmations, scheduling updates, account notifications, and customer support messages.

Message frequency may vary. Message and data rates may apply. Recipients may opt out at any time by replying STOP or request assistance by replying HELP.

Messaging Suspension or Termination

Just Peachy Data reserves the right to suspend or terminate messaging functionality for accounts that violate applicable laws, carrier requirements, platform policies, or industry messaging standards.

6. Data Ownership

- You retain ownership of your business and client data
- We do not sell your data
- You grant us permission to store and process your data solely to provide the Service

7. Service Availability

We strive for high availability but do not guarantee uninterrupted access. The Service may be temporarily unavailable due to:

- Maintenance
- Updates
- Technical issues

8. Limitation of Liability

To the maximum extent permitted by law:

- We are not liable for indirect, incidental, or consequential damages
- Our total liability shall not exceed the amount paid by you for the Service in the last 12 months

9. Termination

We may suspend or terminate your access if:

- You violate these Terms
- You misuse the platform
- Required by law

You may terminate your account at any time.

10. Modifications

We may update these Terms from time to time. Continued use of the Service constitutes acceptance of the updated Terms.

11. Governing Law

These Terms are governed by the laws of the State of Texas, United States.

12. Contact Information

Just Peachy Data LLC

Email: admin@justpeachydata.com

Email: compliance@peachsuitepro.com

Email: support@peachsuitepro.com

Website: <https://justpeachydata.com>

Website: <https://peachsuitepro.com>